

**TENTATIVE RULING FOR CIVSB2505826**  
**Department S24 - Judge Carlos M. Cabrera**

This courtroom follows California Rules of Court, rule 3.1308(a)(2) for tentative rulings. See also San Bernardino Superior Court Local 561. **If both sides do not appear, the tentative will simply become the ruling.**

Ramirez v. American Honda Motor Co. Inc., et al  
Motion: Compel Compliance with Discovery Order  
Movant: Daniel Macias Perez and Rosa Ramirez (Plaintiffs)  
Respondent: American Honda Motor Co. Inc. (AHM)

**RELEVANT FACTUAL AND PROCEDURAL BACKGROUND**

On February 27, 2025, Plaintiffs filed their complaint against AHM, alleging two causes of action under the Song-Beverly Warranty Act: (1) breach of express warranty and (2) breach of implied warranty. On May 15, 2025, Plaintiffs served AHM a PMQ deposition notice scheduled for June 24, 2025. (Powell Decl. (filed 9/25/2025) ¶ 3; Ex. A.) The notice had 26 topics of discussion and 17 categories of documents to be produced. On June 18, 2025, AHM served objections and indicated that it would not produce a witness. (*Id.* ¶ 5; Ex. C.) AHM failed to appear at the noticed deposition, which was recorded as a nonappearance. (*Id.* ¶ 7; Ex. B.) Plaintiffs' counsel sent meet and confer e-mails to AHM's counsel on June 4, June 24 and July 24, 2025. The deposition was not rescheduled, which necessitated Plaintiffs filing their motion to compel. (Powell Decl. ¶¶ 8-9.) Plaintiff's motion to compel the PMQ deposition was unopposed.

On January 12, 2026, the Court granted the motion and ordered AMH to produce its PMQ and custodian of records for deposition "related to the matters in Plaintiffs' Notice of Deposition [dated May 15, 2025] by February 11, 2026." The Court also ordered sanctions against AHM and/or AHM's counsel in the amount of \$1,485. (Order 1/12/2026.)

On February 12, 2026, Plaintiffs served an amended notice for AHM's PMQ set for March 6, 2026. (Lupinek Decl. ¶ 6; Ex. C.) The deposition went forward on March 6; however, a PMQ was not produced as to topic Nos. 21-26. (*Id.* ¶¶ 4-5; Ex. B.) When Plaintiffs' counsel inquired, he was informed by AHM's counsel that "We can further meet and confer. But I'll state on the record that we don't have a PMQ to discuss those matters. Some of them are privileged. Some of them are irrelevant and undiscoverable. But -- so this is what our PMQ is being produced on." (*Id.* ¶ 5; Ex. B.) Plaintiffs' now move to compel AHM's compliance with the January 12, 2026 order and request for monetary and issue sanctions. AHM opposes.

## ANALYSIS

After notice and opportunity for a hearing, the court may impose sanctions on any party or attorney who engages in a misuse of the discovery process. (Code Civ. Proc., §2023.030.) Misuses of the discovery process include, but are not limited to, the following: “Failing to respond or to submit to an authorized method of discovery and Disobeying a court order to provide discovery”. (CCP. §2023.010(d)(g)). Applicable sanctions that can be imposed are: (i) issue sanctions, where the court orders that the designated facts are to be taken as established; (ii) evidentiary sanctions, where the court prohibits a party from introducing designated matters into evidence, (iii) terminating sanctions; (iv) monetary sanctions; and (v) contempt sanctions. (CCP §2023.030(a)-(d).) Before imposing sanctions, the court must find a failure to comply with an order and that the failure was willful. (*Miranda v. 21st Century Ins. Co.* (2004) 117 Cal.App.4<sup>th</sup> 913, 929; *Deyo v. Kilbourne* (1979) 84 Cal.App.3d 771, 787.)

“The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. ‘Discovery sanctions ‘should be appropriate to the dereliction and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.’” [Citation.] If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. ‘A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.’ [Citation and fn. omitted.]” (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4<sup>th</sup> 967, 992.) “[D]ismissal of an action as a discovery sanction is a drastic remedy which should be used sparingly.” (*Trail v. Cornwell* (1984) 161 Cal.App.3d 477, 488-489.) There are constitutional due process limitations on the power of courts, even in aid of their own valid processes, to order discovery sanctions that deprive a party of his opportunity for a hearing on the merits of his claim. (*Newland v. Superior Court* (1995) 40 Cal.App.4<sup>th</sup> 608, 614, citing *Midwife v. Bernal* (1988) 203 Cal.App.3d 57, 64.)

On January 12, 2026, the Court issued a clear and unambiguous order requiring AHM to produce a PMQ deposition “related to the matters in Plaintiffs’ Notice of Deposition [dated May 15, 2025] by February 11, 2026.” (Order 1/12/2026.) AHM provides no justification or rational

for disobeying the Court's order. There is no reasonable excuse for why AHM failed to provide a PMQ for topics Nos. 21-26 nor is there a proposal to rectify its failure, despite the Court's order. This motion is not moot given that AHM failed to comply with the Court's orders. As such the Court will order AHM to produce its PMQ(s) for topics Nos. 21-26 as outlined in the February 12, 2026 amended notice.

Monetary sanctions are warranted. This is now the second time this court is ordering AHM to comply with a simple discovery demand. The hours and costs sought with the instant motion are reasonable. Furthermore, they were necessary to again attempt AHM to comply with a court order. At this time, the Court finds issue and evidentiary sanctions to be premature given that AHM did at least produce a witness at the deposition. However, the court will indicate that if Plaintiff is required to again return to Court to get this deposition completed, the Court will consider issuing evidentiary and/or issue sanctions.

### **RULING**

1. Plaintiff's motion to compel compliance with the January 12, 2026 discovery order is GRANTED. AHM is ordered to produce its PMQ(s) for topics Nos. 21-26 as outlined in the February 12, 2026 amended notice. Counsel should be prepared to discuss the date and time of this deposition at time of hearing. Once deposition is set it may not be continued without a written stipulation or court order.
2. Defendant and/or its attorneys of record, Nelson Mullins Riley & Scarborough LLP, are ordered to pay Plaintiff an award of monetary sanctions in the total amount of \$2,212.50, within ten (10) calendar days of this Order.
3. Movant to give Notice.